FIRST INSTANCE COURT

OF THE VIBE JUSTICE SYSTEM (VJS)

Neutral Citation Number

[2026] LEXBY-FI 4

IN THE MATTER OF

> *Should VJS adopt a deterministic semantic retrieval layer (a vector index, e.g. sqlite-vec, built over the canonical committed markdown and queried by a deterministic command returning top-K citations without spending model tokens on the search) to reduce token consumption and raise the fast-path hit rate; and if so, decide (1) whether it must be index-not-replacement with the committed markdown remaining the single source of law under s. 1; (2) what measurable condition triggers adoption and whether cheaper intermediates (tag-sharding, grep/keyword pre-filtering) must be exhausted first; and (3) whether the layer offends s. 12 anti-bloat or falls within its allowance for what compresses or screens. To be reconciled with s. 1, s. 11(c), s. 12, VPR 2 and VPR 8, the three-gate split test, and [2026] LEXBY-FI 3.*

Before:

Coade J

Date: **5 June 2026** *REQUEST FOR RULING*

JUDGMENT

1. This court was asked to rule upon the following question: Should VJS adopt a deterministic semantic retrieval layer (a vector index, e.g. sqlite-vec, built over the canonical committed markdown and queried by a deterministic command returning top-K citations without spending model tokens on the search) to reduce token consumption and raise the fast-path hit rate; and if so, decide (1) whether it must be index-not-replacement with the committed markdown remaining the single source of law under s. 1; (2) what measurable condition triggers adoption and whether cheaper intermediates (tag-sharding, grep/keyword pre-filtering) must be exhausted first; and (3) whether the layer offends s. 12 anti-bloat or falls within its allowance for what compresses or screens. To be reconciled with s. 1, s. 11(c), s. 12, VPR 2 and VPR 8, the three-gate split test, and [2026] LEXBY-FI 3.

2. RATIO DECIDENDI: A deterministic, token-free semantic retrieval layer (a vector index built over the canonical committed markdown and queried by a deterministic command returning top-K citations) is a screening device within the express allowance of s. 12 and does NOT offend it, but only on three cumulative and binding conditions, the absence of any one of which renders adoption unlawful as bloat (s. 12) or as a competing source of law (s. 1): (1) Index-not-replacement is MANDATORY. The committed markdown (the citator and the full judgments) remains the single and only source of law under s. 1; the index must be wholly derived, deterministically rebuildable from that markdown, and never the store of any ratio, status, or citation. The index points to canonical text; it never speaks the law. A query result is a pointer to be verified against the committed markdown, never itself authority. This extends the summary-with-pointer doctrine of [2026] LEXBY-FI 3 from a human onboarding view to a machine retrieval view: a derived, subordinate artefact that points to canonical text without becoming a rival source is permitted; the index, being subordinate and pointing-not-storing, satisfies severability because it can drift only into harmless staleness (a missed pointer cured by the unchanged markdown), not into a competing rule. To guarantee this against drift, the index must be regenerated deterministically as part of the same operation that amends the citator, so it can never silently diverge from the source. (2) Adoption is GATED on demonstrated need and is presently FORBIDDEN. It is common ground, and the court finds, that at the current corpus the machinery costs more tokens to build and embed than it saves, so the demonstrated-need gate of the three-gate split test is not met (s. 12; s. 15). Adoption is therefore not authorised now. Adoption becomes permissible only upon a stated, measured condition being met on the field record, namely (a) the citator, loaded entire, exceeding a stated token budget fixed by Lexby in advance, OR (b) a measured fast-path miss rate (on-point precedent that better matching would have surfaced) exceeding a stated rate, measured not speculated. (3) Cheaper deterministic intermediates that spend no model tokens (sharding the citator by tag under VPR 8, and grep/keyword pre-filtering) MUST be specified, tried, and shown insufficient before the vector layer is built; their exhaustion is a precondition of the demonstrated-need gate, because s. 12 obliges screening by the least-cost means that suffices. Until the gate is met the forward duty under s. 8 is to monitor and report the two measures, not to build.

3. OBITER DICTA: The single-source risk pressed by the defendant, that an operationally-queried index becomes the de facto authority even where the markdown is the nominal store, is a real hazard but is answered by design and not by prohibition: condition (1)'s requirements that a query return only pointers (never asserted law) and that the index regenerate within the same act that amends the citator together collapse the drift window, so the markdown remains both the nominal and the effective source. The jurisdiction and progression objections are noted and rejected as obiter: the design of VJS's own retrieval substrate is a design question in the conduct of an AI-assisted project within s. 14, and a forward-looking conditional fork of this kind is properly determined at First Instance under s. 13; only a matter destined to change SPEC-LAW need climb. The particular numeric thresholds (token budget, miss rate, sharding boundaries) are reversible, low-blast engineering choices for Lexby to fix by a decisive call and a one-line note, provided they are stated in advance and measurable, so the gate is auditable rather than discretionary. Nothing here authorises any non-deterministic or model-token-spending retrieval; the permission is confined to a deterministic, token-free command, consistent with the s. 19(5) preference for deterministic machinery over model judgement on integrity-bearing functions.

RATIO DECIDENDI - THE BINDING HOLDING

A deterministic, token-free semantic retrieval layer (a vector index built over the canonical committed markdown and queried by a deterministic command returning top-K citations) is a screening device within the express allowance of s. 12 and does NOT offend it, but only on three cumulative and binding conditions, the absence of any one of which renders adoption unlawful as bloat (s. 12) or as a competing source of law (s. 1): (1) Index-not-replacement is MANDATORY. The committed markdown (the citator and the full judgments) remains the single and only source of law under s. 1; the index must be wholly derived, deterministically rebuildable from that markdown, and never the store of any ratio, status, or citation. The index points to canonical text; it never speaks the law. A query result is a pointer to be verified against the committed markdown, never itself authority. This extends the summary-with-pointer doctrine of [2026] LEXBY-FI 3 from a human onboarding view to a machine retrieval view: a derived, subordinate artefact that points to canonical text without becoming a rival source is permitted; the index, being subordinate and pointing-not-storing, satisfies severability because it can drift only into harmless staleness (a missed pointer cured by the unchanged markdown), not into a competing rule. To guarantee this against drift, the index must be regenerated deterministically as part of the same operation that amends the citator, so it can never silently diverge from the source. (2) Adoption is GATED on demonstrated need and is presently FORBIDDEN. It is common ground, and the court finds, that at the current corpus the machinery costs more tokens to build and embed than it saves, so the demonstrated-need gate of the three-gate split test is not met (s. 12; s. 15). Adoption is therefore not authorised now. Adoption becomes permissible only upon a stated, measured condition being met on the field record, namely (a) the citator, loaded entire, exceeding a stated token budget fixed by Lexby in advance, OR (b) a measured fast-path miss rate (on-point precedent that better matching would have surfaced) exceeding a stated rate, measured not speculated. (3) Cheaper deterministic intermediates that spend no model tokens (sharding the citator by tag under VPR 8, and grep/keyword pre-filtering) MUST be specified, tried, and shown insufficient before the vector layer is built; their exhaustion is a precondition of the demonstrated-need gate, because s. 12 obliges screening by the least-cost means that suffices. Until the gate is met the forward duty under s. 8 is to monitor and report the two measures, not to build.

OBITER DICTA

> The single-source risk pressed by the defendant, that an operationally-queried index becomes the de facto authority even where the markdown is the nominal store, is a real hazard but is answered by design and not by prohibition: condition (1)'s requirements that a query return only pointers (never asserted law) and that the index regenerate within the same act that amends the citator together collapse the drift window, so the markdown remains both the nominal and the effective source. The jurisdiction and progression objections are noted and rejected as obiter: the design of VJS's own retrieval substrate is a design question in the conduct of an AI-assisted project within s. 14, and a forward-looking conditional fork of this kind is properly determined at First Instance under s. 13; only a matter destined to change SPEC-LAW need climb. The particular numeric thresholds (token budget, miss rate, sharding boundaries) are reversible, low-blast engineering choices for Lexby to fix by a decisive call and a one-line note, provided they are stated in advance and measurable, so the gate is auditable rather than discretionary. Nothing here authorises any non-deterministic or model-token-spending retrieval; the permission is confined to a deterministic, token-free command, consistent with the s. 19(5) preference for deterministic machinery over model judgement on integrity-bearing functions.

GOOD-LAW

Citation: [2026] LEXBY-FI 4

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LEXBY - PLAIN ENGLISH TRANSLATION

Lexby is an officer of this court. The bench speaks; Lexby translates.

SUMMARY

Lexby asked the court (as a request for ruling, which the court accepted as properly brought) whether VJS should build a fast, token-free search layer over the committed markdown law: a vector index you query with a plain command that returns the top few likely-relevant citations without spending model tokens on the lookup. The court decided this freshly rather than by following an existing precedent, though it extended the reasoning of [2026] LEXBY-FI 3 from the human-onboarding context to the machine-retrieval context. It held that such an index is a permitted screening tool under section 12 (it does not count as forbidden bloat), but only if three conditions are all met. First, it must be index-not-replacement: the committed markdown stays the one and only source of law, the index is fully rebuildable from that markdown, it only points to canonical text and never states the law itself, and it must regenerate in the same step that edits the citator so it cannot silently fall out of sync. Second, building it is forbidden right now because at the current size of the corpus it costs more tokens to build and embed than it saves; it becomes allowed only when a pre-stated, measured trigger is hit (the whole citator exceeding a set token budget, or a measured rate of missed on-point precedent exceeding a set threshold). Third, cheaper no-token options (splitting the citator by tag and grep/keyword pre-filtering) must be specified, actually tried, and shown to be insufficient first.

WHAT THIS MEANS IN PRACTICE

Do not build the vector index now; instead, monitor and report two numbers on the live record (the full citator's token size and the measured fast-path miss rate), set the trigger thresholds in advance as a stated, one-line decisive call, and first implement and prove out the cheaper alternatives (tag-sharding and grep/keyword filtering). Only once a stated threshold is genuinely hit, and the cheaper options are shown insufficient, may you build the index, and even then it must be deterministic, token-free, fully derived from the markdown, regenerated in the same act that amends the citator, and limited to returning pointers that get verified against the committed markdown.

APPEAL ROUTE

Yes. This is a First Instance ruling, so either side may seek permission to appeal to the Court of Appeal under VPR 3 / section 10. Permission is granted only on an arguable point of law or a conflict with binding precedent (for example, that the gating conditions misread section 12 or section 1, or that the matter should have climbed rather than been settled at First Instance); a mere disagreement with the chosen thresholds, which the court flagged as reversible engineering choices, would not qualify.

Handed down by the FIRST INSTANCE COURT of the Vibe Justice System (VJS). 5 June 2026.